TENTATIVE RULINGS FOR August 7, 2026.
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (https://www.sb-court.org) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

MIGUEL ANTONIO HERNANDEZ RAMIREZ, et al.
v.
J.F. SHEA CONSTRUCTION, INC., et al.
CIVSB2327539

Motion: Motion for Summary Judgment
Movant: Cross-Defendants Stater Bros. Markets and Anthony Victor Millen
Respondent: Unopposed

PROCEDURAL/FACTUAL BACKGROUND

This is a consolidated personal injury and subrogation action.

A. CIVDS2327539 (Lead Case/Valencia Action)

On October 31, 2023, Plaintiffs Miguel Antonio Hernandez Ramirez and Teresa Marcelina Melgar Valencia, individually and as successors-in-interest to Decedent Valencia,[1] filed their Complaint against Defendants J.F. Shea Construction, Inc. ("Shea"), Edward Richard Rodriguez III, Stater Bros Markets ("Stater Bros") (dismissed 10/15/2025), and Anthony Victor Millen (dismissed 10/15/2025). The operative Second Amended Complaint ("SAC") added Defendant German Severo (Severo or German). The SAC alleges the following causes of action: (1) negligence (wrongful death) by Ramirez and Valencia against all, (2) negligent infliction of emotional distress (NIED) by Ramirez and Valencia against all, and (3) negligence (survival) by the Estate against all. All Defendants have filed Answers.

[1] Plaintiffs Miguel Antonio Hernandez Ramirez and Teresa Marcelina Melgar Valencia are referred to as Ramirez and Valencia when suing in their individual capacities and as Valencia Estate when suing as the successors-in-interest to Decedent Valencia's Estate.

B. CIVSB2404283 (Hernandez Action)

On January 30, 2024, Plaintiffs Claudia Medina & Briana Cecilia Hernandez, individually and as successors-in-interest to Decedent Hernandez, filed their Complaint against Defendants Shea (dismissed 05/02/2024), Rodriguez, Stater Bros, Millen, Ramirez, Valencia, Valencia Estate, and Severo. The Complaint pleads alleges the following causes of action: (1) motor vehicle negligence (survival and wrongful death) against all, and (2) negligent entrustment (survival and wrongful death) against Shea and Stater Bros. All Defendants have filed Answers.

The Valencia SAC and Hernandez Complaint allege that on June 24, 2023, Decedent Valencia was driving on the Southbound I-215 with Severo and Decedent Hernandez as passengers. Defendant Rodriguez rear-ended Valencia's Jeep. Due to that impact, Decedent Valencia's car moved across the interstate where Defendant Millen failed to take evasive measures and collided with him. Decedent Valencia's Jeep caught fire and Decedents Valencia and Hernandez died. Defendant Rodriguez was driving a vehicle owned and entrusted by Shea, and he was employed by Shea. Defendant Millen was driving a tractor-trailer owned by Stater Bros, and he was employed by Stater Bros. (Valencia's SAC at ¶¶ 12, 14; Hernandez's Complaint at ¶¶ 15-20.)

These two lawsuits were consolidated on November 20, 2024.

C. Shea-Rodriguez Cross-Complaints

On June 10, 2024, Defendants Shea and Rodriguez filed a Cross-Complaint against Cross-Defendants Severo and Valencia Estate for equitable indemnity in the Hernandez Action.

Also, on July 24, 2024, Defendants Shea and Rodriguez filed a Cross-Complaint against Cross-Defendant Severo for equitable indemnity in the Valencia Action.

D. Severo Cross-Complaints

On June 3, 2024, Defendant/Cross-Defendant Severo filed his Cross-Complaint against Cross-Defendants Shea, Rodriguez, Stater Bros., and Millen for apportionment, declaratory relief, and indemnity in the Hernandez Action.

Also, on November 19, 2024, Defendant/Cross-Defendant Severo filed his Cross-Complaint against Cross-Defendants Shea, Rodriguez, Stater Bros., and Millen for indemnity, apportionment, and declaratory relief in the Valencia Action.

E. Stater Bros-Millen Cross-Complaint

On June 5, 2024, Defendants Stater Bros and Millen filed their Cross-Complaint against Cross-Defendants Valencia Estate, Hernandez Estate, Shea, Rodriguez, and Severo in the Hernandez Action.

On April 1, 2025, after a demurrer, Stater Bros and Milled filed the operative First Amended Cross-Complaint (FACC), which pleads cross-claims for equitable indemnity, contribution, declaratory relief, apportionment, comparative fault, negligence (property damage), and NIED.

F. Valencia Estate Cross-Complaint

On July 26, 2024, Cross-Defendant Valencia Estate filed a Cross-Complaint against Cross-Defendants Shea (dismissed 09/18/2025), Rodriguez, Stater Bros (dismissed 5/14/2026), Millen (dismissed 5/14/2026), and Severo for indemnity, declaratory relief, and contribution in the Hernandez Action.

On May 14, 2026, Valencia Estate filed a Request for Dismissal, with prejudice, as to Stater Bros and Millen.

G. <u>Motion for Summary Judgment</u>

Now before the Court is Stater Bros and Millen's ("Moving Parties") Motion for Summary Judgment against the Cross-Complaint filed by the Valencia Estate and the Cross-Complaint filed by Severo. However, because the Valencia Estate has dismissed Stater Bros and Millen from their Cross-Complaint, the Motion is moot in regard to that Cross-Complaint. As such, this court will only address the Cross-Complaint filed by Severo.

To date, Severo has failed to file an opposition to the motion.

<u>DISCUSSION</u>

I. Statement of Law

A summary judgment motion is a mechanism to cut through the parties' pleadings to determine if a trial on the facts is necessary. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*).) Only the pleadings establish the grounds for granting or denying summary judgment. (*Tsemetzin v. Coast Federal Savings & Loan Assn.* (1997) 57 Cal.App.4th 1334, 1343.) Summary judgment is appropriate when there are no material facts in dispute as to any essential element of a cause of action. (Code Civ. Proc., § 437c.)

A party may move for summary adjudication of causes of action, affirmative defenses, damages, or issues of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) A summary adjudication motion is subject to the same rules and procedures as a summary judgment motion. (Code Civ. Proc., § 437c, subd. (f)(2); *Lomes v. Hartford Financial Service Group, Inc.* (2001) 88 Cal.App.4th 127, 131.)

When the defendant is the moving party, the analysis requires (1) identifying the issues framed by the pleadings, (2) determining whether the moving party's showing has established facts that negate the opponent's claim and justify a judgment in the movant's favor, and (3) determining whether the opposition demonstrates the existence of a triable, material factual issue. (*Bostrom v. County of San Bernardino* (1995) 35 Cal.App.4th 1654, 1662.) A defendant must establish no material facts are in dispute by showing "one or more elements of the cause of action … cannot be established, or that there is a complete defense to that cause of action." (*Aguilar, supra,* 25 Cal.4th at p. 850.) Once that burden is met, the plaintiff must produce admissible evidence showing a triable issue of material facts exists. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar, supra,* 25 Cal.4th at pp. 849-51.) The opposing party's failure to file counter-declarations does not relieve the moving party of the burden to establish every element of the causes of action necessary to sustain a judgment in his favor. (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.)

"In ruling on a motion, the court must 'consider all of the evidence' and 'all' of the 'inferences' reasonably drawn therefrom and must view such evidence and such inferences 'in the light most favorable to the opposing party.' (*Aguilar, supra,* 25 Cal.4th at p. 843, citations omitted.)

II. Request for Judicial Notice

Moving Parties request the Court take judicial notice of the following:

- Exhibit A – MSJ Ruling (as to the SAC filed in the Valencia Action), filed on October 9, 2025 in this Action;
- Exhibit B – Order granting Moving Parties' MSJ (as to the SAC filed in the Valencia Action), filed on October 15, 2025 in this Action;

- Exhibit C – Notice of Non-Opposition to Moving Parties' MSJ (as to the SAC filed in the Valencia Action), filed on September 29, 2025 in this Action;
- Exhibit D – Cross-Complaint for Indemnity, Declaratory Relief, and Contribution, filed by Valencia Estate on July 26, 2024 in the Hernandez Action;
- Exhibit E – Cross-Complaint for Apportionment, Declaratory Relief, and Indemnity, filed by Severo on June 3, 2024 in the Hernandez Action;
- Exhibit F – Cross-Complaint for Apportionment, Declaratory Relief, and Indemnity, filed by Severo on November 19, 2024 in the Valencia Action;

The Court grants the request for judicial notice in total.

III. Analysis

Here, Moving Parties seek summary judgment on the two Cross-Complaints filed by Severo in both the Valencia Action (filed 11/19/2024) and the Hernandez Action (filed 06/03/2024) (collectively, "Severo Cross-Complaints"). Both Severo Cross-Complaints allege causes of action sounding in (1) Indemnification, (2) Apportionment of Fault, and (3) Declaratory Relief. (Moving Parties' Separate Statement of Undisputed Material Facts ("UF") # 2-3.)

"The right to indemnity flows from payment of a joint legal obligation on another's behalf. [Citations.] The elements of a cause of action for indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is contractually or equitably responsible." (*Expressions at Rancho Niguel Ass'n v. Ahmanson Developments, Inc.* (2001) 86 Cal.App.4th 1135, 1139.) In an indemnity action, the trier of fact must determine whether the indemnitee was held legally responsible for damages to a third party, whether the indemnitor's conduct was a substantial factor in causing the harm, and if so, the indemnitee's and indemnitor's percentages of responsibility. (CACI No. 3800.)

There are only two basic types of indemnity: express indemnity and equitable indemnity. (*Prince v. Pacific Gas & Electric Co.* (2009) 45 Cal.4th 1151, 1157 (*Prince*).)

Express indemnity refers to an obligation that arises " 'by virtue of express contractual language establishing a duty in one party to save another harmless upon the occurrence of specified circumstances.' " (*Bay Development, Ltd. v. Superior Court* (1990) 50 Cal.3d 1012, 1029.) Express indemnity generally is not subject to equitable considerations or a joint legal obligation to the injured party; rather, it is enforced in accordance with the terms of the contracting parties' agreement. (*Markley v. Beagle* (1967) 66 Cal.2d 951, 961.)

On the other hand, unlike express indemnity, traditional equitable indemnity requires no contractual relationship between an indemnitor and an indemnitee. Such indemnity "is premised on a joint legal obligation to another for damages," but it "does not invariably follow fault." (*Western Steamship Lines, Inc. v. San Pedro Peninsula Hospital* (1994) 8 Cal.4th 100, 114.) Although traditional equitable indemnity once operated to shift the entire loss upon the one bound to indemnify, the doctrine is now subject to allocation of fault principles and comparative equitable apportionment of loss. (*Prince*, *supra*, 45 Cal.4th at p. 1158.) Equitable indemnity may include claims for implied contractual indemnity, apportionment of fault, and contribution. (*Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1975) 13 Cal.3d 622, 628; *Bay Development, Ltd. v. Superior Court* (1990) 50 Cal.3d 1012, 1029 ("[I]mplied contractual indemnity is a form of equitable indemnity.");

City of Huntington Beach v. City of Westminster (1997) 57 Cal. App. 4th 220, 224 ("Comparative equitable indemnity includes the entire range of possible apportionments-from no indemnity to total indemnity.").

Here, because the Severo Cross-Complaints do not allege the existence of a contract giving rise to a claim for express indemnity, it is presumed that Severo's indemnity claim is a claim for equitable indemnity.

The basis for comparative equitable indemnity/apportionment of fault is "one person is unjustly enriched at the expense of another when the other discharges liability that it should be his responsibility to pay." (*Children's Hospital v. Sedgwick* (1996) 45 Cal. App. 4th 1780, 1786.) An action on comparative fault is presumed upon a joint legal obligation to another for damages. (*Id.* at p. 1787.) In other words, the indemnitor and indemnitee must be jointly and severally liable to the plaintiff. (*Heritage Oaks Partners v. First American Title Ins. Co.* (2007) 155 Cal. App. 4th 339, 348; *BFGC Architects Planners, Inc. v. Forcum/Mackey Construction* (2004) 119 Cal. App. 4th 848, 852.) Thus, apportionment of fault/comparative equitable indemnity rests upon a jury equally apportioning or allocating a plaintiff's loss among parties who share in the responsibility for the loss. *Knight v. Jewett* (1992) 3 Cal.4th 296, 314; CACI 406 and 3800.)

As for declaratory relief, under Code of Civil Procedure section 1060, a plaintiff must present: "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party." (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546.) In general, a cross-complaint for equitable indemnity properly takes the form of an action for declaratory relief. (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 285.) The duty to indemnify arises when the person to be indemnified becomes liable. (Civ. Code, § 2778, subd. (1); *Collin v. American Empire Ins. Co.* (1994) 21 Cal.App.4th 787, 803.)

Here, Cross Defendants argue that summary judgment should be entered in their favor against Severo because on October 15, 2025, this Court previously entered an Order granting Moving Parties' Motion for Summary Judgment against both sets of Plaintiffs in the Valencia Action and the Hernandez Action. (UF # 4.) Moving Parties argue that because there is a finding of no fault or liability in the underlying Subject Incident, they cannot therefore be held liable for indemnity, apportionment, or declaratory relief. (UF # 5.)

" '[I]n the case law of equitable indemnity ... one point stands clear: there can be no indemnity without liability. In other words, unless the prospective indemnitor and indemnitee are jointly and severally liable to the plaintiff there is no basis for indemnity. [Citation.]' [Citation.] '[A] fundamental prerequisite to an action for partial or total equitable indemnity is an actual monetary loss through payment of a judgment or settlement.' (*Forensis Group, Inc. v. Frantz, Townsend & Foldenauer* (2005) 130 Cal.App.4th 14, 28, citing *Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1130.)

In this case, because this Court has previously determined that Cross Defendants Stater Bros. Market and Millen have no liability to the underlying Plaintiffs in the Valencia Action and the Hernandez Action, there is no basis for indemnity or apportionment of fault.

Therefore, the Court grants Cross Defendants's Stater Bros. Market and Millen Motion for Summary Judgment.

RULING

The Court rules as follows:

(1) grants Moving Parties' requests for judicial notice as to Exhibits A-F;

(2) Deems Stater Bros and Millen's Motion for Summary Judgment as being moot as to the Valencia Estate Cross-Complaint; and

(3) Grants Stater Bros and Millen's Motion for Summary Judgment as to the Severo Cross-Complaints. Because this Court has previously determined that Moving Parties have no liability to the underlying Plaintiffs in the Valencia Action and the Hernandez Action, there is no basis for indemnity or apportionment of fault. (UFs # 2 - 5, and evidence cited in support: Samaniego Decl., COE, Exhs. A-C, E-F.)

Dated: August 7, 2026

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Judge Nicole Quintana Winter

WENCESLAO RAMIREZ
v.
GENERAL MOTORS LLC
CIVSB2437854

Motion(s):	**(1)**	**Demurrer to Plaintiff's First Amended Complaint**
	(2)	**Motion to Strike Punitive Damages**
Movant(s):	**Defendant**	**General Motors LLC**
Respondent(s):	**Plaintiff**	**Wenceslao Ramirez**

Factual and/or Procedural Context

On December 24, 2024, Plaintiff Wenceslao Ramirez (Plaintiff) filed his initial Complaint against Defendant General Motors LLC (GM). The operative First Amended Complaint (FAC), filed on November 12, 2025, alleges the following five causes of action: (1) violation of subdivision (d) of Civil Code Section 1793.2; (2) violation of subdivision (b) of Civil Code Section 1793.2; (3) violation of subdivision (a)(3) of Civil Code Section 1793.2; (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement-concealment.

Plaintiff alleges that he purchased a 2021 Chevrolet Silverado 1500 (the Subject Vehicle) on June 28, 2021, but defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including transmission defects, engine defects, and electrical defects. Despite being covered by warranties, GM failed to repair the vehicle within a reasonable time. GM also failed to provide a replacement or make restitution. (FAC ¶¶ 6-7 and 11-17, Exh. A.)

Plaintiff's fraud claim is based upon GM's purported knowledge of the defective nature of the 8-speed transmission installed in the Subject Vehicle, its failure to disclose the defects to purchasers such as Plaintiff, and its prior and knowingly false marketing materials about the engine. (FAC ¶¶ 59-71.)

Now before the Court is GM's general demurrer to Plaintiff's fifth causes of action (Code Civ. Proc., § 430.10, subd. (e)) and a motion to strike punitive damages. Plaintiff opposes and GM replies.

Discussion and Analysis

The Court finds that the parties have met and conferred as required by the Code.

Authority for Demurrer:

A demurrer can be used only to challenge defects appearing on the face of the pleading under attack, or from matters outside the pleading which are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.)

For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded, i.e., ultimate facts alleged, but not contentions, deductions, or conclusions of fact or law. (*Adelman v. Associated Int'l. Ins. Co.* (2001) 90 Cal.App.4th 352, 359.)

Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary to the allegations in the pleading, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d. 593, 604.) The Plaintiff's ability to prove the allegations is of no concern in ruling on a demurrer. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d. 197, 213-214.) The complaint will be construed liberally. (See Code Civ. Proc., § 452.)

A general demurrer challenges a complaint for failure to state a cause of action under Code of Civil Procedure section 430.10, subdivision (e). It is granted only where the facts alleged on the face of the complaint fail to state any valid claim entitling the plaintiff to relief against the demurring defendant.

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan, supra* 39 Cal.3d at p. 318.) On the other hand, "a trial court does not abuse its discretion by sustaining a general demurrer without leave to amend if it appears from the complaint that under applicable substantive law there is no reasonable possibility that an amendment could cure the complaint's defect." (*Heckendorn v. City of San Marino* (1986) 42 Cal.3d 481, 486.)

GM's Demurrer to Plaintiff's Fifth Cause of Action:

GM demurs to Plaintiff's fifth cause of action for fraudulent inducement-concealment on the grounds that (1) it is barred by the applicable statute of limitations; (2) it fails to state facts sufficient to establish the fraud cause of action; and (3) it fails to allege a transactional relationship giving rise to a duty to disclose.

1. Statute of Limitations:

GM asserts that the three-year statute of limitations for fraud bars Plaintiff's fraudulent inducement - concealment claim. GM argues that Plaintiff cannot invoke the delayed discovery rule because he affirmatively alleges that the alleged "[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period," (FAC ¶ 11), which by its terms expired more than three years before the filing of the Complaint.

On a statute of limitation challenge under a demurrer, the running of the statute must appear clearly and affirmatively from the dates alleged; it is not enough that the complaint may be barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.) Fraud is subject to a three-year limitation period. (Code Civ. Proc., §338, subd. (d).) The delayed discovery rule tolls the applicable statute of limitations if Plaintiff is unable to discover his cause of action with reasonable diligence, and to rely upon it, Plaintiff must plead "facts showing that [Plaintiff was] not negligent in failing to make the discovery sooner and that [Plaintiff] had no actual or presumptive knowledge of facts sufficient to put them on inquiry." (*Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412, 437; *Johnson v. Ehrgott* (1934) 1 Cal.2d 136, 137.)

The FAC sufficiently invokes the delayed discovery rule as Plaintiff alleges, he only recently discovered GM's wrongdoing and inability to repair the Subject Vehicle due to the Defendant concealing the defect. (FAC ¶¶ 22-23, 26-30.)

Plaintiff also successfully alleges tolling based upon the repair doctrine. Plaintiff alleges the statute of limitations was tolled during periods GM claimed the defect was susceptible to repair, undertook repairs of the vehicle, and reported the Subject Vehicle was fixable. (FAC ¶¶ 31-33.)

Separately, Plaintiff also alleges that the limitations period was tolled by GM's active concealment of the transmission defect. (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1192 ["The doctrine of fraudulent concealment tolls the statute of limitations where a defendant, through deceptive conduct, has caused a claim to grow stale"]; *Karoutas v. HomeFed Bank* (1991) 232 Cal.App.3d 767, 771 ["a duty to disclose arises at common law if material facts are known only to the defendant and the defendant knows that the plaintiff does not know or cannot reasonably discover the undisclosed facts"].)

Specifically, Plaintiff alleges GM is estopped from relying on any statute of limitations defense during the period that GM concealed the transmission defect; minimized the scope, cause, and dangers of the defect with inadequate repair procedures; and refused to investigate, address, and remedy the defect. Plaintiff further alleges that GM's concealment was ongoing, and that GM made it difficult for consumers such as Plaintiff to discover the transmission defect by issuing inadequate service bulletins directly to its dealers to minimize, mask, and/or delay the onset of symptoms associated with the defect. (FAC ¶¶ 34-37.)

Therefore, GM's argument that Plaintiff's fraudulent concealment cause of action is barred by the three-year statute of limitations fails. It cannot be determined from the face of the FAC that Plaintiff's claims are barred by the applicable statute of limitations.

2. ***Plaintiff's Fraudulent Inducement – Concealment Claim is Alleged with Sufficient Specificity:***

A fraudulent concealment claim requires a plaintiff to plead the following: (a) defendant concealed or suppressed a material fact; (b) defendant was under a duty to disclose the fact to the plaintiff; (c) defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (d) plaintiff was unaware of the fact and would not have acted in the same manner knowing of the concealed fact; (e) causation; and (f) damages. (*Jones v. ConocoPhillips Co.* (2011) 198 Cal.App.4th 1187, 1198; see also Civ. Code, § 1710.)

GM argues that Plaintiff failed to allege his fraudulent concealment claim with sufficient specificity. It asserts that Plaintiff failed to plead, among other things, the specific "facts" that GM allegedly failed to disclose; allegations establishing that GM knew of those "facts" at the time Plaintiff purchased his vehicle; what advertisements, brochures, or other materials where GM could have disclosed the allegedly omitted "facts" that Plaintiff reviewed and relied upon in purchasing the Subject Vehicle; how long prior to purchasing the vehicle he viewed them; and whether those materials, if any, were prepared by GM or someone else (such as a dealership). GM also contends that Plaintiff failed to allege, in detail, facts showing the circumstances of concealment and/or what was concealed.

For concealment, the plaintiff needs to specifically plead the elements, i.e., the content of the omitted facts, the defendant's awareness of the materiality of those facts, the inaccessibility of the fact by the plaintiff, the general point that the omitted fact should or could have been disclosed, and the plaintiff's justifiable reliance. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43-44 (*Rattagan*).)

Here, Plaintiff alleges he entered into a warranty contract with GM on June 3, 2015. (FAC ¶¶ 6-7, Exh. A). Plaintiff identifies the material facts GM knew prior to his acquisition of the Subject Vehicle and withheld from Plaintiff related to the transmission defect including the issuance of many service bulletins and service bulletin updates to its dealers in the United States, but not its customers, acknowledging problems of loss of acceleration or inability to control the vehicle's speed and acceleration/deceleration thereby, exposing Plaintiff and passengers, along with other drivers who share the road or garage with Plaintiff to a serious risk of accident and injury resulting from and related to defects in the 8-speed transmission. Plaintiff alleges that GM had superior knowledge of the facts including statements made by its engineers, its president, and other executive officers concerning the transmission defects and the fact that a service solution is not going to be developed due to cost. Plaintiff alleges that if he had known that the Subject Vehicle suffered from the transmission defect Plaintiff would not have purchased the vehicle. (FAC ¶¶ 59-71.)

Thus, Plaintiff has sufficiently alleged the elements of a fraudulent inducement by concealment claim by alleging (1) concealment (FAC ¶¶ 26-30, 35-36, 64, 66-68, and 71), (2) knowledge of falsity (FAC ¶¶ 60-61, 66-67, and 69), (3) intent to induce reliance (FAC ¶ 67-70), (4) justifiable reliance (FAC ¶¶ 63, 68, 70, and 71), and (5) damages (FAC ¶ 71).

Therefore, GM's argument on failure to plead fraud with the requisite specificity fails.

3. Plaintiff Alleges Sufficient Facts in Support of a Transactional Relationship Giving Rise to a Duty to Disclose:

"A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as the plaintiff's fiduciary or is in some other confidential relationship with the plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to the defendant, and the defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) the defendant actively conceals discovery of material fact from the plaintiff (i.e., active concealment)." (*Rattagan, supra*, 17 Cal.5th at p. 40.) The circumstances under (3) through (5) presume a preexisting relationship such as between seller and buyer, employer and prospective employee, doctor and patient, or parties entering a contract. (*Ibid*.)

Relying on cases such as *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, (*Bigler-Engler*) and *Rattagan*, GM argues that because the FAC does not allege that Plaintiff purchased the Subject Vehicle from GM or otherwise entered into a transaction with GM, Plaintiff has not alleged facts demonstrating a duty to disclose.

Here, Plaintiff alleges a direct contractual relationship with GM arising from the warranty. (FAC ¶¶ 6-7, Exh. A.) GM does not provide discussion of why the warranty could not serve as a basis for a direct relationship giving rise to a duty to disclose. GM cites *Bigler-Engler*, but it involved a plaintiff who was injured by a medical device prescribed by and leased from her doctor. The plaintiff did not have a warranty from the manufacturer, and the doctor was not an agent of the manufacturer. (*Bigler-Engler, supra,* 7 Cal.App.5th at p. 314.) Thus, *Bigler-Engler* is distinguishable.

To the extent GM argues a transactional relationship also does not arise because there are no facts to allege Plaintiff purchased the Subject Vehicle from a dealer that is GM's agent, GM's argument is without merit. Plaintiff alleges the Subject Vehicle was purchased at Chevrolet of Puente Hills in City of Industry, CA (GM's authorized dealer). (FAC ¶ 6.) In *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844 (*Dhital*),[2] the Court of Appeal held that allegations concerning the existence of an express warranty issued in connection with the purchase

[2] On December 18, 2024, the California Supreme Court dismissed its review of *Dhital*. Accordingly, *Dhital* is binding. (See Cal. Rules of Court, rule 8.528(b).)

of a vehicle were sufficient to establish a transactional relationship at the pleading stage where the Court stated:

> At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs' allegations are sufficient. Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects."

(*Dhital, supra,* 84 Cal.App.5th at p. 844.)

As discussed above, Plaintiff alleges similar allegations here. Therefore, GM's argument on failure to allege a transactional relationship giving rise to a duty to disclose fails.

Based upon the forgoing, the Court overrules GM's demurrer to the fifth cause of action for fraudulent concealment.

Motion to Strike:

Motions to strike can be used to strike any "irrelevant, false or improper matter inserted in any pleading," or to strike any pleading or part thereof "not drawn or filed in conformity with the laws of this state, a court rule or order of court." (Code Civ. Proc., § 436, subs. (a)-(b).) "Irrelevant" means any immaterial allegation in the complaint, and "immaterial" means (i) an allegation that is not essential to the statement of a claim or defense, (ii) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, and (iii) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc., § 431.10, subs. (b)-(c).)

The grounds to strike shall appear either on the face of the challenged pleading or from matters that are judicially noticed. (Code Civ. Proc., §437.) Additionally, the court reads the allegations as a whole, with all parts in their context, and assumes their truth. (*Spielholz v. Superior Court (Los Angeles Cellular Telephone Company)* (2001) 86 Cal.App.4th 1366, 1371; *Clauson v. Superior Court (Pedus Services, Inc.)* (1989) 67 Cal.App.4th 1253, 1255 (*Clauson*).)

GM's Strike Motion:

GM seeks to strike Plaintiff's prayer for punitive damages. (FAC, Prayer, ¶ g, at p. 11:22.)

A party may obtain punitive damages where he/she proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice:

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct[3] which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the

[3] "Despicable conduct" is essentially conduct that is so vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down upon and despised by ordinary decedent people. (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

> defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (Civ. Code, § 3294, subds. (a) & (c).)

In a motion to strike punitive damage allegations, the "ultimate facts showing entitlement to such relief must be pled by the Plaintiff." (*Clauson, supra,* 67 Cal.App.4th at p. 1255.) Facts of oppression, fraud, or malice must be alleged. (*Grieves v. Superior Court (Fox)* (1984) 157 Cal.App.3d 159, 166.) The necessary facts can be stated as ultimate facts or conclusions of law, as long as they are read in context with the other facts alleged as to the defendant's conduct to "adequately plead the evil motive requisite to recover[] … punitive damages." (*Monge v. Superior Court (Crown Gibralter Graphic Center, Inc.)* (1986) 176 Cal.App.3d 503, 510.)

In the motion to strike, GM argues that Plaintiff fails to state facts sufficient to support punitive damages and fails to state facts sufficient to state causes of action for fraudulent inducement - concealment, thus he cannot support punitive damages.

In the opposition, Plaintiff correctly argues that he has sufficiently alleged a fraudulent inducement-concealment cause of action and sufficiently alleged facts in support for punitive damages.

Here, as discussed above, a fraudulent concealment cause of action is alleged, and it is sufficient to support the recovery of punitive damages. Therefore, the Court denies Defendant GM's motion to strike.

In its motion, GM also argues that punitive damages are not recoverable under the Song Beverly Consumer Warranty Act (Act). Ultimately, as fraud exists to allow the recovery of punitive damages, the prayer for punitive damages may remain. But this contention is addressed.

In *Troensegaard v. Silvercrest Industries, Inc.* (1985) 175 Cal.App.3d 218, 228, the Court of Appeal held a plaintiff cannot recover both punitive damages and the civil penalty under Civil Code section 1794, subdivision (d), for the same willful, oppressive, and malicious conduct. If Plaintiff prevails at trial, then they will be required to elect either the civil penalty or the punitive damages award. (*Clauson v. Superior Ct.*, (1998) 67 Cal. App. 4th 1253, 1256.)

Therefore, the Court denies GM's motion to strike.

RULING

The Court rules as follows:

(1) Overrules GM's Demurrer to Plaintiff's Fifth Cause of Action for Fraudulent Inducement-Concealment.
(2) Denies GM's Motion to Strike Plaintiff's Prayer for punitive damages.
(3) Orders GM to file an Answer to Plaintiff's First Amended Complaint within 10 court days of the Court's final ruling.
(4) Orders Plaintiff, as the prevailing party, to give notice of the Court's findings, rulings and orders set forth herein.

Dated: August 7, 2026

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Judge Nicole Quintana Winter